

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 Guild's Opposition to City of Norvale's Motion for Stay
Pending Appeal Filed January 27, 2026

The Piedmont Booksellers Guild opposes a stay of the January 23 preliminary injunction. The City has not shown a strong likelihood that the order's central protection will be reversed, an irreparable injury from operating under neutral event rules, or equities that outweigh the loss of time-sensitive literary programs. The motion confirms that the City can administer site plans, attendance estimates, emergency access, and traffic measures while the disputed speaker charges and disclosure burdens are restrained.

The Guild does not object to the City seeking relief first from the district court. That procedural choice supplies the record required for any later appellate request, but it does not lower the substantive stay standard. A stay is extraordinary relief, not an automatic consequence of announcing an interlocutory appeal. The moving party must justify suspension of protection the Court found necessary after briefing, stipulated facts, declarations, exhibits, and a reported hearing.

The February 14 fair makes a stay particularly harmful. Invitations, transportation, publicity, and bookseller commitments must be settled now. If an author is omitted because the City demands a final name and topic too early or imposes another speaker charge, a later decision cannot recreate the reading. The Guild has offered complete logistical cooperation and asks only that protected programming not be conditioned on the challenged speaker-specific rules while the case proceeds.

The City's content-neutrality argument does not answer narrow tailoring. The preliminary order did not find that officials had censored a viewpoint. It found a likely constitutional defect in using paid status to trigger a forty-five-day identity-and-topic submission and an escalating fee when comparable operational information can be obtained directly. A neutral rule can burden substantially more speech than its logistical purpose permits.

The record supports that conclusion. Guild fairs have operated since 2019 without violence. The two minor medical calls and routine unloading congestion warrant ordinary safety planning, which the Guild accepts. They do not show that compensation, a topic line, or a separate \$45 charge predicts the need for an officer, medic, lane closure, or sanitation service. The City's own fair organizer agreed that format, time, attendance, and location are the useful planning variables.

Nor does the ordinance assure a timely, bounded amendment process. Staff may consider a substitution but cannot say which changes are materially different, when review must conclude, or which condition is permissible. A written reason after a scheduled date has passed does not preserve the expression. The injunction leaves the City free to require date-specific site information and to respond to documented imminent risks. It simply prevents the City from making the speaker-specific burdens a condition of these fairs.

The City identifies no irreparable operational loss. It already possesses the Guild's preliminary site plan, historical attendance range, announced dates, emergency contact, loading proposal, and reading-area location. The Guild has committed to update actual time, format, and expected audience information. Staff can preserve the service lane, coordinate transit access, enforce capacity, and address competing reservations under rules that do not depend on whether an author receives an honorarium.

An asserted inability to collect disputed fees during litigation is compensable, and the City has not shown that the amounts finance a specific service that will otherwise disappear. Its pilot summary concedes that time records do not isolate work per speaker. The City also proposes suspending the per-speaker fee as alternative relief, confirming that the fee is not essential to immediate safety. Administrative preference for one form cannot establish irreparable harm.

The motion's concern about contempt is overstated. The injunction identifies the Paid-Speaker Permit Ordinance and expressly preserves neutral generally applicable safety requirements. The City may seek clarification if a concrete uncertainty arises. It has not identified a planned condition that the Guild refuses to follow or an employee unable to perform a particular task. A hypothetical interpretive dispute does not justify suspending all protection.

The balance of harms strongly favors keeping the injunction in effect. The Guild's events recur, but each date and each author opportunity is unique. A missed February reading cannot be shifted mechanically to April because publications, travel, caregiving, vendor participation, and audience availability change. Small booksellers decide whether to participate based on cumulative costs. The constitutional harm arises during planning, before a formal denial, when uncertain approval and recurring charges deter invitations.

The City's proposed three-business-day review promise does not cure the ordinance or the stay's effects. It appears in litigation papers rather than the enacted standards, and it begins only after a "final submission," the very concept in dispute when an author confirms late. It also leaves officials free to decide whether a substitution changes operations without an articulated boundary. Voluntary assurances may inform administration but do not replace enforceable interim protection.

The public interest supports both safe parks and free literary exchange. The existing injunction accommodates both. It does not give the Guild priority over another reservation, enlarge capacity, close a street, or disable a documented risk response. It lets the City regulate actual logistical features while preventing the paid-speaker trigger from burdening speech. A stay would shift the risk of legal error entirely to speakers and small booksellers during the months when protection matters.

The City's Rule 65 concerns do not justify a stay. The order and accompanying memorandum, read together, identify the challenged ordinance, the Guild's recurring fairs, and the preserved safety authority. The City participated fully and knows which provisions produced the dispute. If the Court determines that the operative paragraph should list the restrained provisions more precisely, it may clarify the language without suspending the injunction.

Security likewise can be addressed by explanation or a nominal amount. The City has not quantified recoverable monetary harm attributable to the injunction. It proposes no bond figure and concedes that a partial stay could suspend the speaker fee. Requiring the Guild to secure speculative municipal costs would burden the same expression the order protects. A limited correction is different from a finding that the City should resume enforcement pending appeal.

The Guild therefore asks the Court to deny the stay. In the alternative, it asks the Court to preserve the injunction while clarifying that the City may collect neutral logistical information, impose conditions tied to documented event-specific risks, and return for relief if materially changed circumstances arise. The Guild will provide prompt updates and preserve communications so that any later controversy has a concrete record.

Respectfully submitted January 27, 2026, by counsel for the Piedmont Booksellers Guild. Counsel certifies electronic service on the City and confirms that the Guild remains available for expedited appellate scheduling without agreeing that its February program should be placed under the challenged speaker-specific regime.